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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiff,

v.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT; and DOES 1-5,

Defendants.

Case No. 8:25-cv-00191-SRM-KES

DEFENDANT THE VONS COMPANIES, INC.'S MEMORANDUM OF POINTS AND AUTHORITIES IN OPPOSITION TO PLAINTIFF'S MOTION FOR CLASS CERTIFICATION

Date: April 15, 2026
Time: 1:30 p.m.

Trial Date: Not Yet Set
Complaint Filed: February 6, 2025

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I. INTRODUCTION

Plaintiff's Motion for Class Certification ("Motion") should be denied. Plaintiff brings claims against Defendant The Vons Companies, Inc. ("Vons" or "Defendant") for alleged classwide violations of (1) the California Penal Code ("Megan's Law") and (2) the California Fair Chance Act ("FCA"). Plaintiff fails to meet his burden under Rule 23 to demonstrate these claims are suitable for class treatment.

Initially, Plaintiff, a former schoolteacher, is demonstrably unfit to serve as a class representative (*i.e.*, fiduciary). His federal conviction for possessing child-exploitation material, his **repeated** violations of supervised release, his acknowledged inability to exercise sound judgment while under the influence, and his **ongoing** struggles with compliance and sobriety leave no doubt about his unfitness. No class action can proceed with a representative whose own conduct, credibility, and continuing criminal issues overwhelm the litigation.

Plaintiff is also atypical. He disclosed his conviction to Vons, and the undisputed evidence shows Vons would have taken the same employment action regardless of his appearance on the Megan's Law Website ("MLW"). His circumstances—an existing employee hired during a staffing emergency, not an applicant covered by the FCA—bear no resemblance to the situations of other individuals he seeks to represent.

Nor can Plaintiff establish commonality or predominance. His theory ignores California law, which authorizes employers to rely on MLW information **to protect a person at risk**, including children—precisely the concern presented here. And the FCA requires individualized assessments, which necessarily defeats any effort to adjudicate liability on a classwide basis. Determining whether Vons lawfully evaluated conviction history, whether a particular crime was job-related, whether mitigating evidence was provided, or whether MLW information was used for a statutorily permissible purpose all require individualized inquiries.

Finally, a class action is not a superior method of resolving these claims. The case turns on individualized assessments, sensitive personal histories, and fact-intensive

statutory defenses. Proceeding as a class would strip Vons of its due process right to contest each applicant's circumstances and would thrust absent individuals' highly personal criminal histories into public litigation without need.

After conducting extensive discovery, Plaintiff cannot satisfy his burden under Rule 23. Class certification should be denied.

II. RELEVANT FACTUAL BACKGROUND

A. Vons Maintains Background Check Policies and Procedures That Require Individualized Assessment of Every Applicant.

Vons is a family-friendly grocery retailer whose stores routinely serve and employ minors. (Declaration of Courtney Jones ("Jones Decl.") ¶ 2, 6.) It therefore maintains and follows background-adjudication procedures tailored to California's FCA. (Jones Decl., ¶ 3; Ex. 1 (Standard Operating Procedures)[1]; Ex. 2 (North Depo.) at 161:4-14.) The procedures also are consistent with the Legislature's safety directive that MLW information may be used "to protect a person at risk." (*Id.*)[2]

Consistent with Government Code section 12952 and its regulations, Vons conducts background checks of all its retail job applicants at the post-offer stage of the hiring process. (*Id.*) During the relevant period, Toni North and Courtney Jones were responsible for adjudicating background checks for California. (Ex. 2 at 44:2-14, 51:8-12, 75:6-15, 61:7-8; Jones Decl., ¶ 3.) As part of its process, Vons makes conditional offers first and then evaluates conviction history, with no pre-offer inquiry into criminal records and no consideration of arrests not resulting in conviction, diversion, or sealed/expunged matters.

[1] Exhibit 1 "(Ex. 1)", and all other exhibits ordered by Arabic numerals are filed herewith and attached to the Declaration of Karimah Lamar ("Lamar Decl.").

[2] Vons is a subsidiary of Albertsons Companies, Inc. ("Albertsons"). (Jones Decl., ¶ 3.) Vons operates Vons and Pavilions stores in Southern California. (*Id.*) Because Vons is an indirect subsidiary of Albertsons, policies and procedures followed by Vons may have the Albertsons Companies trademark. (*Id.* at ¶ 5.) In limited circumstances, including the background adjudication process, employees of other Albertsons subsidiaries may provide support for Vons. (Ex. 1; Jones Decl., ¶¶ 3–6; Ex. 3 (Background Check Fails); Ex. 2 at 60:17-61:8; 84:14-21; 146:17-147:1.) This explains why the Standard Operating Procedures ("SOP") and internal forms at times bear the "Albertsons" mark while being applied to Vons's applicants. (*Id.*)

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(Ex. 1; Jones Decl., ¶ 4.) If post-offer information could be disqualifying, Vons conducts an individualized assessment addressing: (1) the nature and gravity of the offense; (2) the time since the conviction; and (3) the nature of the job held or sought. (*Id.*) Specifically, Vons reviews the crime(s) committed by the applicant and determine which, if any, are related to the job to which they are applying. (*Id.*; *see* Ex. 3 (Background Check Data).) Vons then documents the decision path—identifying the most serious offense where multiple exist—and treats non-disclosure itself as a distinct integrity issue. (Ex. 2 at 38:2-39:3, 53:2-23; Ex. 3; Jones Decl., ¶ 4.) In other words, Vons conducts a unique analysis for each background adjudication to determine whether the crime committed by the applicant is adversely job related enough to warrant an initial "fail," which would trigger the next step in the background check process. (*See id.*) These steps are not optional; they are embedded in the workflow and trigger the statutory "pre-adverse" and "adverse action" notices that invite mitigation evidence for Vons to consider before any final decision. (Ex. 1; Ex. 2 at 66:22-71:1.)

If Vons intends to rescind a conditional job offer after conducting the background check, it first provides written notice to the applicant—the "Pre-Adverse Action Letter." (*Id.*) The Pre-Adverse Action Letter notifies the applicant of the conviction, provides a copy of the conviction history report, and explains that the applicant has a right to respond in writing and with mitigating evidence. (*Id.*)

If a final decision is made after the applicant provides mitigating evidence (if at all), Vons provides the applicant with a written notice of same: the "Adverse Action Letter." (*Id.*) The Adverse Action Letter notifies the applicant of the disqualification, a process to challenge the decision or request reconsideration, and the applicant's right to file a complaint with the California Civil Rights Department ("CRD"). (*Id.*)

Throughout the relevant period, Vons passed more than 1,700 individuals and failed approximately 901 individuals after individualized adjudication—objective evidence that outcomes turn on applicant-specific facts rather than inflexible rules. (Ex. 3; Jones Decl., ¶¶ 4-5.) While Vons has not passed candidates whose records and roles presented

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unresolved risk involving sexual-offenses, including individuals required to register as sexual offenders, an Albertsons banner who is not a defendant in this case (Safeway) has passed at least one MLW-listed individual who was similarly convicted for viewing child pornography for a non-customer-facing corporate position after considering mitigating evidence. (Ex. 2 at 159:15-160:8.)

B. Plaintiff Is an Alcoholic, Bipolar Sex Offender with Ongoing Issues.

Plaintiff is not a stable or trustworthy class representative. His criminal history is not historical or rehabilitated—it is active, escalating, and continuously monitored by the federal court. Plaintiff remains on a lengthy term of supervised release stemming from his federal conviction for possessing child-exploitation material in *U.S. v. Sandoval*, Case No. 16-CR-1694 (S.D. Cal.). (Request for Judicial Notice ("RJN") Exs. A (Judgment)–B (Modification).)[3] His release conditions reflect the seriousness of his offense and the federal court's ongoing concern regarding his behavior and mental state. (*See* Exs. A–B.)

1. Plaintiff Is Convicted of Possessing Child Explicit Sexual Material and Required to Register as a Sex Offender.

In July 2016, Plaintiff was federally indicted for possessing child-exploitation material in the U.S. District Court for the Southern District of California, Case No. 16-CR-1694. (RJN, Ex. A (Judgment in a Criminal Case).) He pleaded guilty in August 2017, was sentenced to 97 months in federal prison, and upon release was placed on 10 years of supervised release, with strict "Special Conditions of Supervision," including a prohibition on initiating contact with minors outside the presence of a supervising adult who is aware of the details of his conviction. (*Id.*) These conditions were not discretionary—they were imposed because the federal court found Plaintiff presents a heightened risk requiring ongoing oversight. (*Id.*)

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[3] Exhibit A "(Ex. A)", and all other exhibits ordered alphabetically are filed herewith and attached to Vons's Request for Judicial Notice.

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2. Plaintiff Discloses His Status as a Registered Sex Offender to Vons After Vons Conditionally Offered Him Employment.

In January 2023, mere months after leaving federal custody and while still living in a halfway house, Plaintiff began working for Vons during a period of post-pandemic staffing strain, including high turnover and absenteeism. (Ex. 4 (Responses to Special Interrogatories) at 5:13-21.) Because of these staffing challenges, Plaintiff was permitted to begin working at Vons before his background check process concluded. (*Id.*) Vons was unaware Plaintiff was a convicted sex offender who is listed on the MLW when it hired him on a conditional basis (*i.e.*, subject to a background check).

As part of the background check process, and only after receiving a conditional offer, Plaintiff disclosed he had been convicted of receipt of an image of a minor in August 2017. (Ex. 5 (Pltf. Depo.) at 203:2-204:2; Ex. 6 (Disclosure).) During the pendency of Plaintiff's background check, he was hired in the deli section of the store, where he would regularly interact with customers, including children. (Ex. 5 at 114:6-15, 116:11-117:2; Jones Decl., ¶ 6.) As part of his position as a deli clerk, Plaintiff was required to greet guests, ask every guest if they needed help, and make sure every guest is escorted to a product when asked. (Ex. 5 at 118:4-119:12; Ex. 7 (Commitment to Service).) Vons also regularly employs minors in its stores. (Jones Decl., ¶ 6.)

Vons received the results of the background check, which included both the disclosure of his conviction on his application and the presence of his name on the MLW. Under its individualized assessment procedures, Vons considered the disclosed conviction to potentially preclude employment as a customer-facing deli clerk—who interacts with children regularly. (Ex. 1; Ex. 2 at 67:5-16, 69:1-70:5, 77:5-14, 110:24-111:3, 119:6-9, 130:4-8, 138:9-18.) Whether he disclosed his offense or appeared on the MLW, the result for Vons would have been identical: Vons would evaluate a customer-facing deli clerk under its individualized assessment procedures. (*Id.*)

Vons issued a Pre-Adverse Action Notice and invited Plaintiff to provide mitigating evidence. (Ex. 2 at 106:19-24, Ex. 8.) Plaintiff submitted materials Vons considered, but it

was insufficient to overcome the job-related risk presented. (Jones Decl., ¶ 6; Ex. 9 (Mitigation Documents.) Because Plaintiff's role required constant interaction with customers—including children—and shared facilities (e.g., restrooms) with children, Vons made the lawful and safety-driven decision to withdraw his conditional offer of employment on March 8, 2023. (Ex. 2 at 214:9-13; Ex. 5 at 134:4-135:1; Ex. 10 (Adverse Action Notice).) Vons considered Plaintiff's request to work as an overnight stock clerk, but even that position involves working with minors. (Ex. 2 at 214:9-13.)

3. Plaintiff's Ongoing Violations of His Supervised Release and Continued Risk Factors.

Far from demonstrating rehabilitation, Plaintiff continued engaging in prohibited conduct after his release, after beginning employment at Vons, and even after filing this lawsuit.

a. Plaintiff's Unauthorized Devices and Evidence of Deletion.

In July 2023, Plaintiff's period of supervised release commenced. (Ex. 5 at 70:18-22.) In April 2024, Plaintiff was found in possession of an unapproved cellular device that had been reset to factory settings, indicating potential concealment. (RJN Ex. B (Petition for Warrant or Summons for Offender Under Supervision).) He was admonished and reminded of his obligation to comply with the conditions of his supervised release, including complying with his computer-monitoring agreement. (*Id.*)

Despite this admonishment, just months later, a computer forensic exam revealed visits to sexually explicit websites prohibited by his supervised-release terms: Pornhub, Chaturbate, Babepedia, Cam4, Xhamster, xxxhdsex.cc, and Leeporn. (*Id.*; Ex. 5 at 167:23-172:13.) The forensic exam showed Plaintiff used "Data Destroyer," a program known for permanently deleting files. (*Id.*)

b. Plaintiff Screenshotted Images of Children.

In December 2024, Plaintiff's probation officer again petitioned the court for a warrant because Plaintiff **admitted** he had "succumbed" to temptation while online and had been viewing and screenshotting images of prepubescent children. (Ex. B.) This was

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not an isolated lapse—it reflected a repeat pattern of conduct directly tied to his underlying offense and an admission that again violated the terms of his supervised release. (*See id.*)

c. Plaintiff's Alcohol-Related Judgment Failures and Mental-Health Concerns.

Plaintiff's probation officer also reported Plaintiff's alcohol use—especially while on psychotropic medications—was "**extremely concerning**" and associated with behavior linked to his original conviction and suicidal attempts. (*Id.*) (emphasis added.)[4] In January 2025, Plaintiff admitted to violating the terms of his supervised release, only to immediately fire his attorney and appeal the order. (Ex. C (Criminal Transcript Jan. 24, 2025) at 4:5-17; Ex. D (Criminal Transcript Feb. 7, 2025) at 18:16-25.) The district court also denied Plaintiff's motion for an emergency stay on his mandatory psychological evaluation (which was at that time scheduled for February 20, 2025), in part because the psychological evaluations were required as an ongoing part of his supervised release. (Ex. D.) Plaintiff also lost his appeal; the Ninth Circuit affirmed the order just six weeks ago on January 2, 2026. (Ex. E.)

d. Plaintiff's Continued Violations After Filing This Lawsuit.

In August 2025, nearly seven months **after** Plaintiff filed this lawsuit, Plaintiff's probation officers again discovered Plaintiff was viewing prohibited images that "reflected the lascivious exhibition of female genitalia and pubic area, and completely nude." (RJN Ex. F.) In response, the court imposed additional restrictions, including alcohol monitoring prohibiting him from drinking alcohol or frequenting places that sell alcohol, and further seized his devices for forensic review. (*Id.*)[5] Plaintiff admitted he consumed alcohol heavily and acknowledged that when he consumes alcohol it may affect his judgment. (*Id.*)

[4] Plaintiff's issues related to substance abuse remained a concern despite completing the residential portion of the Dual Diagnosis Residential Drug Abuse Treatment Program on July 15, 2022. (Ex. 9.)

[5] Plaintiff has not produced the forensic report yet, so it is presumably still pending. (Lamar Decl., ¶ 16.)

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C. Procedural History Demonstrates Plaintiff's Counsel's Repeated Lack of Diligence.

Plaintiff's conduct throughout this litigation has been marked by repeated delays and disregard for Court-ordered deadlines, requiring Vons to continually prompt basic compliance. Plaintiff missed the deadline to respond to Vons's August 6, 2025 discovery and served nothing until Vons followed up three days after the due date. (Lamar Decl., ¶ 13.) He then ignored the Court's September 29 order to supplement responses by October 13, serving them nine days late. (ECF Dkt. 42.; Lamar Decl., ¶ 14.)

Yet even with these delays, Plaintiff still had ample opportunity to conduct meaningful discovery. More than four months after serving his first requests—and just sixteen days before the discovery cutoff—he unilaterally noticed a Rule 30(b)(6) deposition the night before Thanksgiving. (Lamar Decl., ¶ 12.) Defendants agreed to extend the discovery period to accommodate it, but instead of using that opportunity, Plaintiff sought a sweeping continuance of all case deadlines. (*Id.*; ECF Dkt. 52.) The Court denied the request, finding he had not been diligent, and the deposition never occurred solely because of Plaintiff's own dilatory conduct. (ECF Dkt. 54.)

III. STATUTORY BACKGROUND

A. California Megan's Law—Penal Code Section 290.46—Allows Employers to Deny Employment to Protect a Person at Risk.

As an initial matter, Plaintiff's premise is legally incorrect. California law does not prohibit employers from using the MLW for **any** reason. Plaintiff's arguments depends on ignoring half of the statute. The Legislature has expressly recognized that convicted sexual offenders, like Plaintiff, "pose a potentially **high risk of committing further sex offenses** after release from incarceration," and that "**protection of the public from reoffending by these offenders is a paramount public interest**." Cal. Pen. Code § 290.03(a)(1) (emphasis added). The Legislature further declared it is a "compelling and necessary public interest" for the public to have access to information about persons convicted of offenses so they can "**adequately protect themselves and their children from these persons**." *Id.*

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§ 290.03(a)(2) (emphasis added).

Consistent with these findings, the California Department of Justice makes MLW information publicly available. And critically, the Penal code **does not** impose a categorical employment-use ban. Rather, it does the opposite: it expressly **authorizes** the use of MLW information when necessary "**to protect a person at risk.**" Penal Code section 290.46(j)(1) provides:

> A person is authorized to use information disclosed pursuant to this section only **to protect a person at risk**." (Emphasis added.)

Only after codifying this affirmative authorization does the statute state that other uses, including certain employment uses, are prohibited "**[e]xcept as authorized under paragraph (1)** or any other provision of law." *Id.* § 290.46(j)(2)(E) (emphasis added).

Plaintiff completely ignores paragraph one in his motion. (*See* Motion at 7:23-8:5 (omitting Paragraph (j)(1)).) His reading would nullify Section 260.46(j)(1) and require employers—including grocery stores, schools, and daycare centers—to ignore publicly available risk-based information even when making decisions about roles that place employees in direct proximity to children. Such a construction is not only wrong but would produce absurd results the Legislature plainly did not intend. Plaintiff's representations about California law are therefore demonstrably incorrect and misleading. Employers are expressly permitted to review MLW information **when necessary to protect at-risk individuals**—precisely the situation presented here where Vons employs minors and regularly serves unaccompanied children.

B. California's Fair Chance Act—Government Code Section 12952.

The FCA, Government Code section 12952, requires employers to conduct an individualized assessment before denying an **applicant** employment based "solely or in part" on conviction history. The statute does **not** impose a categorical bar on considering convictions. Instead, it directs employers to make a reasoned, job-related evaluation using the three statutory factors: (1) the nature and gravity of the offense or conduct; (2) the amount of time that has passed since the offense or conduct and completion of the sentence;

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and (3) the nature of the job held or sought. Cal. Gov't Code § 12952(c)(1)(A).

If, after this individualized assessment, the employer preliminarily determines a conviction is disqualifying, the FCA requires certain procedural notices. The employer must provide written notification containing all the following: (1) notice of the disqualifying conviction(s) that are the basis for the preliminary decision to rescind the offer; (2) a copy of the conviction history report, if any; (3) an explanation of the applicant's right to respond to the notice of the employer's preliminary decision before that decision becomes final and the deadline by which to respond. *See id.* at § 12952(c)(2). The explanation must inform the applicant that the response may include submission of evidence challenging the accuracy of the conviction history report that is the basis for rescinding the offer, evidence of rehabilitation or mitigating circumstances, or both. *Id.* The applicant must be given at least five business days to respond to the notice before the employer makes the final decision. *Id*. at § 12952(c)(3).

If the employer ultimately denies employment based on an applicant's conviction history, the employer must issue a final notice identifying: (1) the final denial or disqualification; (2) any existing procedure the employer has for the applicant to challenge the decision or request reconsideration; and (3) the right to file a complaint with the CRD. *Id.* at § 12952(c)(5).

Importantly, the FCA **does not** require employers to (1) create or maintain a written policy describing their individualized assessment process; (2) produce or memorialize the **individualized assessment in writing;** or (3) use any particular format or template in conducting that assessment.

This is in contrast to other FEHA provisions—such as the mandatory written harassment and discrimination prevention policy required under 2 C.C.R. section 11023—which expressly impose written-policy obligations. The FCA contains no such requirement, confirming that the Legislature intended a flexible, applicant-specific review, not a rigid, policy-driven or document-driven process. This statutory framework—requiring individualized, fact-intensive inquiries and procedural notices, but not mandating

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written documentation or uniform policies—directly undermines Plaintiff's class theories. It is structurally incompatible with the kind of uniform, classwide determinations Plaintiff seeks, and instead reinforces that each adjudication necessarily turns on the applicant's crime, the applicant's history, the job at issue, and the mitigating evidence provided.

IV. LEGAL STANDARD FOR CLASS CERTIFICATION

Class actions are "an exception to the usual rule that litigation is conducted by and on behalf of the individual named parties only." *Califano v. Yamasaki*, 442 U.S. 682, 700-701 (1979). Class actions for damages are considered the "most adventuresome" type of class action. *Amchem Prods. Inc. v. Windsor*, 521 U.S. 591, 614-615 (1997); *see also* Fed. R. Civ. Proc. 23(b)(3)(D) (requiring consideration of "the likely difficulties in managing a class action"). Issues are "individualized" when members of a proposed class must "present evidence that varies from member to member." *Tyson Foods, Inc. v. Bouaphakeo*, 577 U.S. 442, 453 (2016).

To obtain class certification under Rule 23(a), Plaintiff bears the burden of demonstrating, by a preponderance of the evidence, each of the four threshold requirements: (1) numerosity; (2) common questions of law or fact; (3) typicality; and (4) adequacy of the class representatives and their counsel. Fed. R. Civ. P. 23(a)(1)-(4); *Olean Wholesale Grocery Coop., Inc. v. Bumble Bee Foods LLC*, 31 F.4th 651, 664 (9th Cir. 2022). The Supreme Court has made clear: "Rule 23 does not set forth a mere pleading standard." *Wal-Mart v. Dukes*, 564 U.S. 338, 350 (2011). Rather, "[a] party seeking class certification must affirmatively demonstrate his compliance with the Rule." *Id*.

Even if Plaintiff could satisfy Rule 23(a)—and he cannot—it remains his burden to show that the case also qualifies for class treatment under Rule 23(b). *Dukes*, 564 U.S. at 345-46. Under Rule 23(b)(3), Plaintiff must establish both predominance and superiority. The predominance criterion is even more demanding than commonality under Rule 23(a)." *Comcast Corp. v. Behrend*, 133 S. Ct. 1426, 1432 (2013). It is not enough for Plaintiff to simply point to questions he claims are common—the central question is whether those issues are sufficiently cohesive and capable of classwide resolution. Class certification

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"tests whether proposed classes are sufficiently cohesive to warrant adjudication by representation." *Amchem Prods.*, 521 U.S. at 623.

Under this rigorous standard, the Motion falls well short. As demonstrated below, the putative classes lack adequacy, typicality, commonality, and predominance; the individualized inquiries mandated by the Megan's Law and FCA overwhelm any purported common questions; and Plaintiff's own credibility problems, ongoing criminal violations, and procedural missteps render him fundamentally incapable of representing a class. For these reasons, Plaintiff fails to meet his burden, and his Motion must be denied.

V. ARGUMENT

A. Plaintiff's Criminal Conviction, Substance Abuse Problems, and Ongoing Supervised Release Violations Render Him an Inadequate Class Representative.

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Plaintiff will not "fairly and adequately protect the interests of the class," a threshold requirement of Rule 23(a)(4) for any proposed representative. A district court acts within its discretion when determining whether a named plaintiff is inadequate due to a recent criminal record. *Meyer v. Portfolio Recovery Assocs., LLC*, 707 F.3d 1036, 1042 (9th Cir. 2012), *cert. denied*, 569 U.S. 975 (2013). Courts deny certification where a plaintiff's criminal conduct, history of substance abuse, or repeated parole violations render him vulnerable to impeachment or unable to credibly advance the class's interests. *Porath v. Logitech, Inc.*, No. C 18-03091 WHA, 2019 WL 6134936, *5 (N.D. Cal. Nov. 18, 2019) (denying class certification in part based on Plaintiff's inadequacy as class representative).

Indeed, the Court in *Porath* found inadequacy even though the plaintiff had three felony convictions and a four-year period of drug abuse, yet he had completed his parole while his case was pending. *Id.* at *6. Despite being drug free for years, having full custody of his child, and his parole ending that year, the district court **still found him inadequate** because he was susceptible to being "clobbered on the stand with his convictions, all to the detriment to the class" and that class representatives "must be trusted." *Id.* at *5 (citing Fed. R. Evid. 609 and Fed. R. Civ. P. 23). Those same concerns apply here, but in sharper

form.

1. Plaintiff's Active Federal Supervision and Repeated Violations Create Severe Credibility Concerns.

Plaintiff is not a rehabilitated, decades-removed offender. He is an individual with ongoing criminal-justice supervision who has repeatedly violated release conditions imposed by the federal court. Plaintiff admitted to violating his supervised release in January 2025, then attempted to reverse course a week later by appealing—an appeal that was ultimately rejected on January 2, 2026. (RJN Ex. B at 4:5-17; Ex. C at 18:16-25; Ex. E.) His 10-year supervised-release term, which began in mid-2024, was reset for another ten years following those violations. (Ex. 5 at 107:7-108:15.)

More troubling is the nature of the violations. In October 2024, Plaintiff admitted to screenshotting images of children on his device—well after his release and long after his employment at Vons ended. (Ex. A.) In December 2024, Plaintiff's probation officer again petitioned the court for a warrant because Plaintiff admitted that he had "succumbed" to temptation while online and had been viewing and screenshotting images of prepubescent children. (*Id.*) In August 2025, months after this lawsuit was filed, he again viewed prohibited images that "reflected the lascivious exhibition of female genitalia and pubic area, and completely nude." (Ex. F.) He further admitted to heavy alcohol use and this admission triggered yet another modification of his supervised release. (*Id.*) Now, he must undergo alcohol monitoring prohibiting him from drinking alcohol or frequenting places that sell alcohol. (*Id.*)

These are not minor technical violations; they go directly to judgment, credibility, impulse control, and ongoing risk—key factors courts consider under Rule 23(a)(4). Plaintiff claimed that his conviction was allegedly caused by alcohol abuse. (Ex. 5 at 131:4-10.) That he is still abusing alcohol, the same condition he claims led him to engage in conduct that resulted in his conviction for child porn, only underscores his vulnerabilities, illuminating why he is an inadequate class representative for this reason alone.

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2. Plaintiff's Substance Abuse and Mental-Health Issues Compound His Inadequacy.

Plaintiff's own probation officer advised the federal court that Plaintiff's drinking—especially while on psychotropic medications—was "**extremely concerning**" given this behavior was linked to his conviction and suicidal attempts. (Ex. A.) Plaintiff admitted that alcohol impairs his judgment. (Ex. F.) In January 2025, Plaintiff agreed to extend his supervised release and undergo a mental health evaluation, only to immediately fire his attorney and appeal the order. (Ex. B at 4:5-17; Ex. C at 18:16-25.) These findings raise serious questions about his stability, reliability, and fitness to act as a fiduciary for absent class members.

3. Plaintiff's Attempt to Destroy Evidence Undermines His Credibility and Exposes the Class to Impeachment.

Plaintiff was also found in possession of an unauthorized phone in April 2024, and a forensic review revealed he reset the phone to factory settings. (Ex. B.) Such conduct emphasizes that Plaintiff was trying to conceal the websites he was visiting on this unauthorized phone by resetting the phone to hide his search history. Despite being admonished by the court for this unlawful conduct, just months later, another forensic exam revealed visits to sexually explicit websites prohibited by his supervised-release terms: Pornhub, Chaturbate, Babepedia, Cam4, Xhamster, xxxhdsex.cc, and Leeporn. (*Id.*) The forensic exam also showed that Plaintiff used a program called "Data Destroyer," software designed to permanently delete files—to eliminate evidence of improper computer use. (*Id.*)

Courts view such conduct—attempted concealment of wrongdoing—as a powerful indicator of inadequacy because it renders a representative exceptionally vulnerable to impeachment. *See Porath*, 2019 WL 6134936 at *6 (risk that plaintiff would be "clobbered on the stand" warranted denying certification). Indeed, at his deposition, he tried to minimize his activities and deny that he visited these websites. (Ex. 5 at 170:6-173:13.) If he is willing to lie under penalty of perjury at his deposition, he most certainly will at trial.

Here, Plaintiff's credibility vulnerabilities are orders of magnitude greater than those in *Porath*. He is not merely impeachable with dated convictions; he has been impeached already and he is impeachable with ongoing criminal behavior, ongoing supervision, and ongoing violations—including attempted destruction of digital evidence and the possession of prohibited content.

4. Plaintiff's Continuing Misconduct—Before and After Filing Suit—Destroys Adequacy.

Plaintiff's misconduct did not stop upon entering litigation. He violated supervised-release terms three months before filing this case (October 2024), admitted to doing so immediately before filing this case (January 2025), and six months after filing this case (August 2025). (Exs. B, C, F.) A representative who cannot comply with federal court orders in his own criminal case cannot fairly and adequately steward the interests of a putative class.

5. Plaintiff Is Uniquely Inadequate—Even Among Individuals with Criminal Histories.

Vons does not argue that individuals with criminal histories are categorically unfit to serve as class representatives. But Plaintiff's circumstances are uniquely disqualifying:

- He is not a long-rehabilitated offender.
- He has shown an inability to remain compliant for even six months at a time.
- He has repeatedly admitted (and then attempted to retract) violations.
- He has engaged in deceptive behavior to hide his violations.
- He lied under oath at his deposition.
- He has a documented history of evidence destruction and impaired judgment.

Nothing about this profile aligns with Rule 23's requirement that the representative be someone the class, and the Court, can trust to fairly and adequately protect absent class members.

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6. Plaintiff's Credibility Will Become the Focus of This Case—To the Class's Detriment.

Rule 23 prohibits certification where the representative's personal issues will dominate the litigation. That is exactly what would happen here. Plaintiff's violations, his mental-health concerns, his substance-abuse issues, his appeals and reversals, and his continuing forensic investigations will overshadow the merits of this case. His credibility issues will not merely be fodder for cross-examination; they will become the centerpiece of every stage of litigation.

Plaintiff's ongoing misconduct, escalating violations, concealment attempts, and impaired judgment render him uniquely inadequate: (1) He faces extraordinary impeachment exposure, far beyond any other putative class member. (2) His personal violations—including attempts to delete evidence—would become the central focus of the case, displacing any classwide issues. (3) His ongoing criminal-justice supervision creates inherent conflicts and distractions and undermines the reliability required of a class representative. (4) His conduct after filing suit demonstrates that his risk factors are not resolved and remain active concerns—precisely the type of individualized circumstances that defeat adequacy. Courts regularly reject putative class representatives who, like Plaintiff, carry substantial criminal-credibility issues, ongoing supervision, or histories of noncompliance. See, e.g., *Meyer v. Portfolio Recovery Assocs., LLC*, 707 F.3d 1036, 1042 (9th Cir. 2012); *Porath*, 2019 WL 6134936 at *5; *Dunford v. American DataBank, LLC*, 64 F.Supp.3d 1378, 1397 (N.D. Cal. Aug. 12, 2014). His Motion should be denied.

B. Plaintiff Failed to Establish Typicality.

1. Plaintiff Disclosed His Status as a Sex Offender, Making His Claim Fundamentally Different from Those of the Putative Class.

Plaintiff is not a typical member of the proposed Megan's Law class because he affirmatively disclosed his conviction for possessing child pornography. (Ex. 6.) This disclosure alone creates a unique factual pathway to his termination that is not shared by applicants whose only source of sex-offense information was the MLW. (Ex. 2 at 38:2-

39:3, 53:2-23.) Typicality requires that the named plaintiff's claims "align[] with the interest of the class," *Hanon v. Dataproducts Corp.*, 976 F.2d 497, 508 (9th Cir. 1992) and that the representative not be subject to defenses inapplicable to the class at large. *Id.* (plaintiff atypical where unique background required him "to prepare to meet defenses not typical" of the class). This principle is routinely applied where, as here, the proposed representative will be forced to litigate individualized defenses that have no bearing on other class members. *See, e.g.*, *Nguyen v. Nissan N. Am., Inc.*, 487 F. Supp. 3d 845 (N.D. Cal. 2020) (plaintiff atypical when statute of limitations defense applies to him). Typicality is not met if the representative's unique circumstance require them to address defenses not applicable to the class at large. *Id.* ("Hanon's unique background and factual situation require him to prepare to **meet two defenses that are not typical of the defenses which may be raised against other members of the proposed class.**").

Here, Plaintiff faces a textbook unique defense: the "same-decision" defense. (*See* Answer, Dkt. 15 at Eighth Affirmative Defense.) Vons will show that even if Plaintiff had **never** appeared on the MLW, the company would have initiated the adverse action process based solely on his own disclosure of the underlying conviction. (Ex. 2 at 38:2-39:3, 53:2-23.) This defense applies to Plaintiff because other class members may not have disclosed their convictions and therefore may argue that the MLW appearance was the but-for cause of the employment decision. Therefore, even if Plaintiff's theory is correct (it is not) that Vons improperly used information contained on the MLW, Plaintiff's claim would still fail because Vons had an independently sufficient, job-related basis to make the same decision. That defense does not apply to class members who did not disclose their convictions. The same-decision defense defeats typicality.

Because Plaintiff disclosed his conviction, he is atypical from class members who did not, and he would be subject to unique defenses not typical of the putative class.

2. Plaintiff Was Not an Applicant of Vons When His Offer Was Rescinded.

Plaintiff also fails to establish typicality for the FCA class because he was not an

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applicant at the time Vons conducted its individualized assessment and terminated his employment. Plaintiff had already been working for Vons for approximately one and a half months when Vons completed the background-check process and made its final decision. (Ex. 4 (Responses to Special Interrogatories) at 5:13-21.) Government Code section 12952 applies only to "applicants," not employees, and he cannot assert the same statutory rights or procedures that the putative class of *applicants* seek to vindicate. *See Canterberry v. Acara Sols., Inc*., No. 20-CV-02361-KJM-KJN, 2022 WL 317002, at *2 (E.D. Cal. Feb. 2, 2022) (holding plaintiff was not an "applicant" under the Fair Chance Act where he had not applied to the employment agency itself, and granting judgment on the pleadings); *see, e.g., Edwards v. Am. Auto. Ass'n of N. Cal., Nevada & Utah, Inc*., No. A170012, 2025 WL 2435408, at *9 (Cal. Ct. App. Aug. 25, 2025), reh'g denied (Sept. 10, 2025), review denied (Nov. 25, 2025) (the plaintiff was not an applicant under Gov't Code section 11017.1 because he had already started his employment).

Here, this distinction is not a technicality—it goes directly to the core of Rule 23(a)'s typicality requirement. A named plaintiff whose claim turns on a different legal standard, and who is subject to employee-specific defenses, cannot represent a class composed exclusively of applicants. Courts routinely hold that class certification fails where the representative will be forced to litigate issues or defenses that no other class member shares, because such plaintiff-specific matters inevitably become the focus of the litigation rather than the classwide issues. *See, e.g.*, *Hanon*, 976 F.2d at 508 (plaintiff atypical where his "unique background and factual situation" required him to confront defenses not applicable to the class). Because Plaintiff's employment status places him in a fundamentally different legal posture from every putative class member, he cannot serve as a representative for a class of applicants asserting rights under the FCA.

C. Plaintiff Failed to Establish Commonality.

Plaintiff fails to demonstrate the existence of common answers, not merely common questions as required by Rule 23(a)(2). Fed. R. Civ. P. 23(a)(2). *Dukes* makes clear that what matters "is not the raising of common 'questions'—even in droves—but, rather the

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capacity of a classwide proceeding to generate common answers apt to drive the resolution of the litigation.'" *Dukes*, 564 U.S. at 350 ("Dissimilarities within the proposed class are what have the potential to impede the generation of common answers."). Here, the individualized nature of Vons's background-check process as applied to individualized candidates—and Plaintiff's fundamental mischaracterization of both the Megan's Law and FCA—precludes any such common answers.

1. Plaintiff Failed Establish Commonality as to the Megan's Law Class by Ignoring Half the Penal Code.

As explained, Plaintiff's Megan's Law theory ignores half the statute. Penal Code section 290.46(j)(1) expressly authorizes employers to use MLW information to "protect a person at risk." Plaintiff omits this controlling provision, instead insisting that any use of MLW information for employment purposes is per se unlawful. (*See* Motion at 7:23-8:5 (omitting Paragraph (j)(1)).) That is wrong based on the plain statutory text.

Whether Vons acted "to protect a person at risk" requires a role-specific, fact-intensive analysis, including:

- job duties (e.g., deli clerks work in close proximity to children),
- workplace environment (Vons stores regularly serve and employ minors),
- nature and recency of conviction, and
- any mitigating information provided.

(Ex. 1; Ex. 2 at 66:22-71:1; Ex. 3; Jones Decl., ¶ 5.)

The FCA underscores that criminal-history assessments are individualized, requiring consideration of the specific conviction, elapsed time, job duties, and any mitigating information—factors that vary applicant to applicant and cannot be resolved through a single classwide determination. Plaintiff's own circumstances underscore this point: he worked in a highly visible, customer-facing role, with direct interaction with children, and possessed a recent federal conviction with ongoing supervised-release violations. That factual matrix bears no resemblance to applicants for other positions or with different conviction histories.

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Plaintiff also suggests that because Vons denied employment to all individuals who appeared on the MLW during the relevant period, commonality is automatically satisfied. But that is incorrect: the mere fact that an employment outcome is the same does not establish a common question under Rule 23(a)(2). Courts evaluate whether the reasons underlying those decisions can be resolved classwide—not whether the outcomes happen to align. Here, the evidence shows that Vons's decisions were based on individualized assessments, job-related risk, and statutory authorization to protect persons at risk. (Ex. 1; Ex. 2 at 66:22-71:1; Ex. 3; Jones Decl., ¶ 5.)

Because Plaintiff cannot identify any common issue capable of resolution "in one stroke," *Dukes*, 564 U.S. at 350, he fails to satisfy Rule 23(a)(2) for the Megan's Law class.

2. Plaintiff Failed to Establish Commonality as to the Fair Chance Act Class.

Plaintiff's Fair Chance Act theory depends on two incorrect assumptions: (1) that Vons does not have an SOP because some documents bear that Albertsons name; and (2) that the absence of a standalone Vons policy can create classwide questions of liability. (*See* Motion at 12-14.) Both specious arguments fail.

First, Plaintiff's corporate-name argument is a red herring. Vons is an indirect subsidiary of Albertsons, and the testimony is undisputed that adjudicators perform individualized assessments on behalf of Vons using the SOP framework. (Ex. 1; Ex. 2 at 66:22-71:1; Ex. 3; Jones Decl., ¶¶ 2–3, 5.) Courts routinely rely on evidence of actual implementation, regardless of the logo printed on a document. *See Santos v. TWC Administration LLC*, 2014 WL 12558274 *15-16 (C.D. Cal. 2014) (no joint employment with Time Warner Cable, Inc. where the defendant's employee handbook stated "Time Warner Cable Employee Handbook" and not "TWC Administration LLC Employee Handbook").

Second, the FCA does not require employers to maintain a written policy. And even if the SOP did not exist or did not apply to Vons, a lack of a written policy does not automatically create a certifiable issue. Plaintiff's attempt to bootstrap commonality from

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the absence of a written policy misunderstands the statute and contradicts cases holding that a lack of a policy does not automatically create a class question. *See, e.g.*, *Hernandez v. Christensen Brothers General Eng., Inc*., 670 F.Supp.3d 996, 1009 (C.D. Cal. 2023).

Third—and most importantly—Plaintiff's FCA theory ignores the undeniable evidence that Vons actually conducts individualized assessments, which requires the SOP's application to each applicant, including Plaintiff. (Ex. 1; Ex. 2 at 66:22-71:1; Ex. 3; Jones Decl., ¶ 5.) Vons hires more people with conviction histories than it declines. (Jones Decl, ¶¶ 4–5; Ex. 3.) Vons produced spreadsheets showing its adjudications and explained the individualized factors considered, including offense gravity, number of convictions, the job applied for, and mitigating information. (Jones Decl, ¶¶ 4; Ex. 3.) Plaintiff disingenuously argues Vons produced no evidence of an individualized assessment.

These facts destroy commonality. Liability under the FCA depends on whether each individual applicant received: (1) the required individualized assessment; (2) the specific statutory notices; and (3) a proper evaluation of any mitigating evidence. Those determinations cannot be resolved with a single "common answer." They require one-by-one analysis. Only individuals with the same crime, same timing, same job, and same mitigation could theoretically share answers—and Plaintiff identifies no such group.

Finally, Plaintiff's reliance on selective discovery responses and emails about Albertsons is misplaced. Those communications addressed requests seeking information about employees of non-defendant companies, not whether Vons uses Albertsons's SOPs. (Lamar Decl., ¶ 15.) Vons has never denied its business relationship with Albertsons, and Plaintiff's argument does nothing to produce classwide questions under Rule 23(a)(2). In short, individualized assessments defeat commonality. They are required by statute, performed in practice, and necessarily preclude classwide resolution.

D. Plaintiff Failed to Establish Predominance.

The predominance prong under FRCP 23(b)(3) is "far more demanding" than the commonality requirement under Rule 23(a). *Peabody v. Orange Cnty. Transp. Auth.*, 2015WL12912332, *6 (C.D. Cal. July 7, 2015). If a predominant issue requires "the

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separate adjudication of each class members' individual claim or defense," certification is inappropriate." *Id.* The Ninth Circuit recently reaffirmed this in *Bowerman v. Field Asset Servs.*, 60 F.4th 459, 471 (9th Cir. 2022), holding that certification must be reversed where common issues are "outweighed by complicated individualized questions." Here, Plaintiff cannot meet Rule 23(b)(3)'s stringent standard. Both the FCA and Megan's Law require fact-specific, applicant-specific determinations that eliminate any possibility of common, classwide resolution.

1. Individualized Issues Predominate Plaintiff's Megan's Law Claim.

Individualized issues predominate Plaintiff's Megan's Law claim. The Penal Code is clear that employers can use the MLW to protect people at risk. Pen. Code § 290.46(j). For each applicant who was denied employment because they appeared on the MLW, a factfinder would need to determine whether Vons did so to protect a person at risk. This will require analysis of the job position sought, the proximity to at-risk children and at-risk adults, the mitigating circumstances provided by the applicant, and the length of time from the conviction. There is no evidence that Vons categorically denies all sex offenders—as Ms. North testified that each situation involves review of the above. (Ex. 1; Ex. 2 at 66:22-71:1.) Indeed, Toni North testified that she has passed at least one sex offender as part of her duties to adjudicate background checks, albeit with a different company unnamed in this lawsuit. (Ex. 2 at 159:15-160:8.)

2. Individualized Issues Predominate Plaintiff's FCA Claim.

The FCA is fundamentally individualized by design, requiring employers to make a tailored, applicant-specific assessment of: (1) the nature and gravity of the offense or conduct; (2) the amount of time that has passed since the offense or conduct and completion of the sentence; and (3) the nature of the job held or sought. Gov't Code § 12952(c)(1)(A). The statute does not require employers to write down their individualized assessment, maintain a written policy, or memorialize their reasoning. *Hernandez*, 670 F.Supp.3d at 1009. Thus, the absence of a written policy or paper trail does not create a common question; it simply reflects the flexible structure the Legislature intended.

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a. Vons's Evidence Shows Individualized Assessments for Every Applicant.

The record confirms that Vons actually performs individualized assessments for each applicant: (1) Vons passed over 1,700 applicants and failed approximately 901, demonstrating individualized, applicant-specific outcomes. (Ex. 3; Jones Decl., ¶¶ 4-5.) (2) Vons produced detailed spreadsheets listing all background-check fail results (Plaintiff did not request passes in discovery) and testified how adjudicators analyze offense gravity, number of convictions, job-relatedness, failure to disclose, and recency of offenses. (Ex. 2 at 66:22-71:1; Ex. 3; Jones Decl., ¶¶ 4-5.) (3) These categories themselves include broad ranges—for example, "Property Crime" may include petty theft, embezzlement, forgery, or burglary, each requiring different analysis. (Ex. 3; Jones Decl., ¶¶ 4-5.)

Plaintiff's claim—that Vons "categorically" denies employment to applicants with criminal histories—is contradicted by these facts. And because individualized review is mandated by statute and performed in practice, liability cannot be resolved through any classwide showing.

b. Each Putative Class Member's FCA Claim Would Require a Mini-Trial.

Determining whether Vons violated the FCA for **any** applicant requires examining: (1) the specific offense, (2) the date of conviction or release, (3) the job applied for, (4) the mitigating information provided, (5) the individualized assessment performed, and (6) whether any adverse action letter complied with the FCA's notice requirements. Those issues differ dramatically across applicants and cannot be litigated "in one stroke." As a practical matter, only someone with Plaintiff's precise combination of job position, offense, timing, number of convictions, and mitigation could share common answers—and such a class does not exist. Accordingly, individualized issues overwhelm any alleged common questions under the FCA.

Moreover, *whether* or not a putative class member suffered actual lost wages or suffered emotional distress is wholly unknown. For example, a putative class member may

have applied to Vons, but as soon as the background check process began, that putative class member, knowing what would turn up on the background check report, went and found another job that did not require a background check before Vons even made its determination. That would result in **no damages** for lost wages. *See Bowerman*, 60 F.4th at 470 ("Lacking any sort of representative evidence, the class members were left relying on individual testimony to establish **the existence of an injury** and the amount of damage."); *Castillo v. Bank of Am., NA*, 980 F.3d 723, 733 (9th Cir. 2020) ("complicated" individualized questions about "whether those exposed [to unlawful policy] were **harmed in a way giving rise to liability**") (emphasis added).

E. Plaintiff Fails to Provide a Coherent Trial Plan and Fails to Demonstrate that a Class Action is Superior.

1. Plaintiff Fails to Provide a Trial Plan.

Plaintiff fails to explain how the Court could try this case as a class action, even though Rule 23(b)(3) and the Ninth Circuit require Plaintiff to present a realistic, workable trial plan. *Zinser v. Accufix Research Instit.*, 253 F.3d 1180, 1189 (9th Cir. 2001). Liability under both the FCA and Megan's Law turn on applicant-specific assessments—job-related risk analyses, conviction histories, offense characteristics, timeliness, and mitigation evidence—making a class trial an exercise in thousands of mini-trials that no plan could consolidate without depriving Vons of individualized defenses. Damages are likewise not ascertainable on a classwide basis. The Supreme Court has made clear that class actions cannot proceed where they "sacrifice procedural fairness" or deny a defendant the opportunity to assert "every available defense," *Lindsey v. Normet*, 405 U.S. 56, 66 (1972), and *Dukes* confirms employers' entitlement to individualized determinations and individualized affirmative defenses. 564 U.S. at 366–67. Plaintiff proposes no structure for managing these applicant-specific issues or safeguarding Vons's rights, and his failure to provide any viable trial plan is fatal to certification.

2. A Class Action Is Not Superior Due to Privacy Concerns.

Even if the Court found that common questions of law or fact predominate, a class

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action is still not superior method for adjudicating these claims. The putative class consists of individuals whose criminal convictions, MLW listings, and in many cases highly sensitive information that many have strong privacy or trauma-related reasons to keep confidential. Forcing such information into proceedings for the sake of one representative would be intrusive and would deter participation, rendering the class unmanageable.

F. Plaintiff's Counsel Failed to Show He Is Adequate.

Counsel's inability to meet deadlines or follow simple procedural rules is powerful evidence of inadequacy under Rule 23(a)(4). *Parker v. FedEx Nat. Ltl, Inc.*, 2011 WL11671754, at *8–9 (C.D. Cal. Apr.11, 2011) ("failure to follow even simple orders concerning page limits[] suggests that [counsel] will not provide appropriate representation[.]").

Plaintiff and his counsel have shown a consistent pattern of delay and noncompliance with deadlines and rules throughout this litigation. (ECF Dkt. 42; Lamar Decl., ¶¶ 12–14.) This Court has already noted Plaintiff failed to act diligently when he waited until two weeks before the cutoff to serve a Rule 30(b)(6) deposition notice. (ECF Dkt. 54 at 2:14–16.) This sustained lack of diligence is incompatible with the responsibilities inherent in class litigation, and it is further reflected in Plaintiff's failure to comply with the local rules in filing this motion, including submitting a table of contents that appears to pertain to an entirely different case. Plaintiff has failed to show adequacy of counsel, and his motion should be denied.

VI. CONCLUSION

Vons respectfully requests that the Court deny Plaintiff's Motion in its entirety.

Dated: February 18, 2026

/s/ Karimah J. Lamar
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